

PART I: INFORMATION

This is a combined synopsis/solicitation for commercial items prepared with additional information included in this notice. This announcement constitutes the only solicitation; offers are being requested and a written solicitation will not be issued. The solicitation number is 1600003553 and this solicitation is issued as a Request For Proposals (RFP). The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2024-03. The North American Industry Classification System code is 336390. This requirement is 100% set-aside for small business

SEE SECTION B FOR LIST OF ITEMS

ITEMS WILL BE AWARDED INDIVIDUALLY. MORE THAN ONE ITEM MAY BE AWARDED TO ONE OFFEROR.

NOTICE TO GOVERNMENT WHEN CONTRACTOR(S) DELAYS:

In the event the contractor(s) encounter difficulty in meeting performance requirements, or when there is an anticipated difficulty in complying with the delivery terms or completion dates, or whenever the contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely delivery/performance of this contract, the contractor must immediately notify the Field Administrative Contracting Officers at UNICOR (FPI Gilmer) or in writing, giving pertinent details. This information will not be construed as a waiver by the Government of the required delivery schedule, or the Governments rights to impose consideration against delinquencies or other remedies provided by this contract.

Contractor agrees that FPI is in the category of the most favored or best commercial customer category of the Contractor and as such, the Contractor will:

During the contract period, the Contractor shall report to the Contracting Officer all price reductions offered to the category of customers that are considered by the Contractor to be their most favored or best commercial customer.

1. A price reduction shall apply to purchases under this contract if, after the award date, the Contractor-

i) Revises downward its commercial catalog, price list, schedule, etc., to its best commercial customers (or category of customers) below the awarded price under this contract;
ii) Grants more favorable discounts or terms and conditions to its best commercial customers than those contained in this contract that would result in prices below the awarded price under this contract, an/or

iii) Grants special discounts to its best commercial customer (or category of customers) that would result in prices lower than the awarded price under this contract.

2. The Contractor shall offer the price reduction to FPI with the same effective date, and for the same time period, as extended to the commercial customer (or category of customers).

The Contractor may offer the Contracting Officer a voluntary price reduction at any time during the contract period.

The Contractor shall notify the Contracting Officer of any price reduction subject to this clause as soon as possible, but not later than 15 calendar days after its effective date.

Future requirements for these or similar items from this or other UNICOR factories may be added to the resulting contract if considered to fall within the scope of work and the price is determined to be fair and reasonable.

INVOICES ARE TO BE MAILED TO:

UNICOR, Federal Prison Industries

Central Accounts Payable

P.O. Box 11849

Lexington, KY 40578-1849

ATTN: Supervisory Operating Accountant

PH: 1-800-827-3168

Or

INVOICES ARE TO BE EMAILED TO:

Accounts.payable@usdoj.gov

PART II: FAR CLAUSES

52.212-4, Contract Terms and Conditions - Commercial Products And Commercial Services (NOV 2023).

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services.

As prescribed in [12.301\(b\)\(4\)](#), insert the following clause:

Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Mar 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

___ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).

___ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

___ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

___ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).

X (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).

___ (6) [Reserved].

___ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115–390](#), title II).

___ (11)

(i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115–390](#), title II).

___ (ii) Alternate I (Dec 2023) of [52.204-30](#).

X (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).

___ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).

___ (14) [Reserved].

___ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).

___ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

X (18)

(i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of [52.219-6](#).

___ (19)

(i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of [52.219-7](#).

___ (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).

___ (21)

(i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).

___ (ii) Alternate I (Nov 2016) of [52.219-9](#).

___ (iii) Alternate II (Nov 2016) of [52.219-9](#).

___ (iv) Alternate III (Jun 2020) of [52.219-9](#).

___ (v) Alternate IV (Jan 2025) of [52.219-9](#).

___ (22)

(i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

___ (ii) Alternate I (Mar 2020) of [52.219-13](#).

X (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

___ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

X (26)

(i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

___ (ii) Alternate I (Mar 2020) of [52.219-28](#).

___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).

___ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637](#)(a)(17)).

X (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O. 11755).

X (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Mar 2026)([E.O. 13126](#)).

X (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

X (34)

(i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

___ (ii) Alternate I (Feb 1999) of [52.222-26](#).

X (35)

(i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

___ (ii) Alternate I (Jul 2014) of [52.222-35](#).

X (36)

(i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).

___ (ii) Alternate I (Jul 2014) of [52.222-36](#).

X (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

___ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)

(i) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

___ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)

___ (41)

(i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (May 2008) of [52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).

___ (47)

(i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).

___ (ii) Alternate I (Jan 2017) of [52.224-3](#).

___ (48)

(i) [52.225-1](#), Buy American-Supplies (Oct 2022) ([41 U.S.C. chapter 83](#)).

___ (ii) Alternate I (Oct 2022) of [52.225-1](#).

___ (49)

(i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (Jan 2025) of [52.225-3](#).

___ (iv) Alternate III (Feb 2024) of [52.225-3](#).

___ (v) Alternate IV (Oct 2022) of [52.225-3](#).

___ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

___X_ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) ([42 U.S.C. 5150](#)).

___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) ([42 U.S.C. 5150](#)).

___ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).

___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).

___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).

___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

X (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).

___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

X (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).

___ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).

___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

___ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

___ (65)

(i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).

___ (ii) Alternate I (Apr 2003) of [52.247-64](#).

___ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

___ (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter67).

___ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).

___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

___ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

___ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in

FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi)

(A) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Alternate I (Feb 2000). As prescribed in [12.301](#) (b)(4)(i), delete paragraph (d) from the basic clause, redesignate paragraph (e) as paragraph (d), and revise the reference to "paragraphs (a), (b), (c), or (d) of this clause" in the redesignated paragraph (d) to read "paragraphs (a), (b), and (c) of this clause".

Alternate II (Oct 2025). As prescribed in [12.301](#) (b)(4)(ii), substitute the following paragraphs (d)(1) and (e)(1) for paragraphs (d)(1) and (e)(1) of the basic clause as follows:

(d)(1) The Comptroller General of the United States, an appropriate Inspector General appointed under section 3 or 8 G of the Inspector General Act of 1978 ([5 U.S.C. App.](#)), or an authorized representative of either of the foregoing officials shall have access to and right to—

(i) Examine any of the Contractor's or any subcontractors' records that pertain to, and involve transactions relating to, this contract; and

(ii) Interview any officer or employee regarding such transactions.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), and (c), of this clause, the Contractor is not required to flow down any FAR clause in a subcontract for commercial products or commercial services, other than—

(i) *Paragraph (d) of this clause.* This paragraph flows down to all subcontracts, except the authority of the Inspector General under paragraph (d)(1)(ii) does not flow down; and

(ii) *Those clauses listed in this paragraph (e)(1).* Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(A) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(B) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5).

(C) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(D) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(E) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(F) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(G) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders— Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

[52.204-30](#), *Alternate I* (Dec 2023) [52.204-30](#).

(H) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\) and \(3\)](#)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702](#)(a) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(I) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(J) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

- (K) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (L) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (M) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (N) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).
- (O) __ (I) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- __ (2) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- (P) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- (Q) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- (R) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)).
- (S) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (T) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (U) __ (I) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).
- __ (2) Alternate I (Jan 2017) of [52.224-3](#).
- (V) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (W) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations. (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (X) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).
- (Y) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (Z) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

52.216-20, Definite Quantity (OCT 1995) – applies until 30 calendar days after contract validity end date.

52.216-21, Requirements (Oct 1995)

(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 30 calendar days after contract validity end.

52.229-3 Federal, State, and Local Taxes. (Feb 2013);

52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004);

52.246-15, Certificate of Conformance (APR 1984)

52.247-34, F.O.B. Destination (Jan 1991). delivery shall be FOB destination to UNICOR

201 FCI Lane
Glenville, WV 26351

52.252-2, Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

DOJ-01 Whistleblower Information Distribution (OCT 2021)

Within 30 days of contract award, the contractor and its subcontractors must distribute the “Whistleblower Information for Employees of DOJ Contractors, Subcontractors, Grantees, or Sub-Grantees or Personal Services Contractors” (“Whistleblower Information”) document to their employees performing work in support of the products and services delivered under this contract (<https://oig.justice.gov/sites/default/files/2020-04/NDAA-brochure.pdf>). By agreeing to the terms and conditions of this contract, the prime contractor acknowledges receipt of this requirement, in accordance with 41 U.S.C. § 4712 and FAR 3.906 & 52.203-17, and commits to distribution. Within 45 days of award, the contractor must provide confirmation to the contracting officer verifying that it has distributed the whistleblower information as required.
(End of Clause)

DOJ-02 Contractor Privacy Requirements (JAN 2022)

A. Limiting Access to Privacy Act and Other Sensitive Information

(1) Privacy Act Information

In accordance with FAR 52.224-1 Privacy Act Notification (APR 1984) and FAR 52.224-2 Privacy Act (APR 1984), if this contract requires Contractor personnel to have access to information protected by the Privacy Act of 1974, the contractor is advised that the relevant DOJ system of records notices (SORNs) applicable to this Privacy Act information may be found at <https://www.justice.gov/opcl/doj-systems-records>.¹ Applicable SORNs published by other agencies may be accessed through those agencies’ websites or by searching the Federal Digital System (FDsys) available at <http://www.gpo.gov/fdsys/>. SORNs may be updated at any time.

(2) Prohibition on Performing Work Outside a Government Facility/Network/Equipment

Except where use of Contractor networks, IT, other equipment, or Workplace as a Service (WaaS) is specifically authorized within this contract, the Contractor shall perform all tasks on authorized Government networks, using Government-furnished IT and other equipment and/or WaaS and Government information shall remain within the confines of authorized Government networks at all times. Any handling of Government information on Contractor networks or IT must be approved by the Senior Component Official for Privacy of the component entering into this contract. Except where remote work is specifically authorized within this contract, the Contractor shall perform all tasks described in this document at authorized Government facilities; the Contractor is prohibited from performing these tasks at or removing Government-furnished information to any other facility; and Government information shall remain within the confines of authorized Government facilities at all times. Contractors may only access classified materials on government furnished equipment in authorized government owned facilities regardless of remote work authorizations.

(3) Prior Approval Required to Hire Subcontractors

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (Subcontractor) in support of this contract requiring the

disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any Subcontractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

(4) Separation Checklist for Contractor Employees

The Contractor shall complete and submit an appropriate separation checklist to the Contracting Officer before any employee or Subcontractor employee terminates working on the contract. The Contractor must submit the separation checklist on or before the last day of employment or work on the contract. The separation checklist must verify: (1)

¹ “[T]he term ‘record’ means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, his education, financial transactions, medical history, and criminal or employment history and that contains his name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a finger or voice print or a photograph.” 5 U.S.C. § 552a(a)(4). “[T]he term ‘system of records’ means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.” 5 U.S.C. § 552a(a)(5).

return of any Government-furnished equipment; (2) return or proper disposition of personally identifiable information (PII)², in paper or electronic form, in the custody of the employee or Subcontractor employee including the sanitization of data on any computer systems or media as appropriate; and (3) termination of any technological access to the Contractor’s facilities or systems that would permit the terminated employee’s access to PII or other sensitive information.

In the event of adverse job actions resulting in the dismissal of a Contractor or Subcontractor employee before the separation checklist can be completed, the Prime Contractor must notify the Contracting Officer within 24 hours and confirm receipt of the notification. In the case the Contractor is unable to notify the Contracting Officer, then the Contractor should notify the Contract Officer’s Representative (COR).

Contractors must complete the separation checklist with the Contracting Officer or COR by returning all Government-furnished property including, but not limited to, computer equipment, media, credentials and passports, smart cards, mobile devices, Personal Identity Verification (PIV) cards, calling cards, and keys and terminating access to all user accounts and systems. Unless the Contracting Officer requests otherwise, the relevant Program Manager or other Key Personnel designated by the Contracting Officer or COR may facilitate the return of equipment.

B. Privacy Training, Safeguarding, and Remediation

(1) Required Security and Privacy Training for Contractors

The Contractor must ensure that all employees take appropriate privacy training, including Subcontractors who have access to PII as well as the creation, use, dissemination and/or destruction of PII at the outset of the employee’s work on the contract and every year thereafter. Training must include procedures on how to properly handle PII, including heightened security requirements for the transporting or transmission of sensitive PII, and reporting requirements for a suspected breach or loss of PII. These courses, along with more information about DOJ security and training requirements for Contractors, are available at <https://www.justice.gov/jmd/learndojo>. The [Federal Information Security Modernization Act of 2014 \(FISMA\)](#) requires all

individuals accessing DOJ information to complete training on records management, cybersecurity awareness, and information system privacy awareness. Contractor employees are required to sign the "Privacy Rules of Behavior," acknowledging and agreeing to abide by privacy law, policy, and certain privacy safeguards, prior to accessing DOJ information. These Rules of Behavior are made

available to all new users of DOJ's computer network and to trainees at the conclusion of DOJ-OPCL-CS-0005.

The Contractor should maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required privacy and cybersecurity training.

(2) Safeguarding PII Requirements

Contractor employees must comply with DOJ Order 0904 and other guidance published to the publicly-available Office of Privacy and Civil Liberties (OPCL) Resources page³ relating to the safeguarding of PII, including the use of additional controls to safeguard sensitive PII (e.g., the encryption of sensitive PII). This requirement flows down from the Prime Contractor to all Subcontractors and lower tiered subcontracts.

(3) Non-Disclosure Agreement Requirement

Prior to commencing work, all Contractor personnel that may have access to PII or other sensitive information shall be required to sign a Non-Disclosure Agreement (NDA) and the DOJ IT Rules of Behavior. The Non-Disclosure Agreement:

- a) prohibits the Contractor from retaining or divulging any PII or other sensitive information, or derivatives therefrom, furnished by the Government or to which they may otherwise come in contact as a result of their performance of work under the contract/task order that is otherwise not publicly available, whether or not such information has been reduced to writing; and
- b) requires the Contractor to report any loss of control, compromise, unauthorized disclosure, or unauthorized acquisition of PII or other sensitive information to the component-level or headquarters Security Operations Center within one (1) hour of discovery.

The Contractor should maintain signed copies of the NDA for all employees as a record of compliance. The Contractor should also provide copies of each employee's signed NDA to the Contracting Officer before the employee may commence work under the contract/task order.

(4) Prohibition on Use of PII in Vendor Billing and Administrative Records

The Contractor's invoicing, billing, and other financial or administrative records or databases is not authorized to regularly store or include any sensitive PII or other confidential government information that is created, obtained, or provided during the performance of the contract without the written permission of the Senior Component Official for Privacy (SCOP). It is acceptable to list the names, titles and contact information for the Contracting Officer, COR, or other personnel associated with the administration of the contract in the invoices as needed.

(5) Reporting Actual or Suspected Data Breach

Contractors must report any actual or suspected breach of PII within one hour of discovery.⁴ A "breach" is an incident or occurrence that involves the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII or (2) an authorized user accesses or potentially accesses PII for an other than authorized purpose. The report of a breach must be made to DOJ. The Contractor must cooperate with DOJ's inquiry into the incident and efforts to minimize risks to DOJ or individuals, including remediating any harm to potential victims.

- a) The Contractor must develop and maintain an internal process by which its employees and Subcontractors are trained to identify and report the breach, consistent with DOJ Instruction 0900.00.01⁵, Reporting and Response Procedures for a Breach of Personally Identifiable Information.
- b) The Contractor must report any such breach by its employees or Subcontractors to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000); Component-level Security Operations Center and Component-level Management Team, where appropriate; the COR; and the Contracting Officer within one (1) hour of the initial discovery.
- c) The Contractor must provide a written report to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000) within 24 hours of discovery of the breach by its employees or Subcontractors. The report must contain the following information:
 - i. Narrative or detailed description of the events surrounding the suspected loss or compromise of information.⁶ Date, time, and location of the incident.
 - ii. Amount, type, and sensitivity of information that may have been lost or compromised, accessed without authorization, etc.
 - iii. Contractor's assessment of the likelihood that the information was compromised or lost and the reasons behind the assessment.⁷
 - iv. Names and classification of person(s) involved, including victim, Contractor employee/Subcontractor and any witnesses.

- v. Cause of the incident and whether the company's security plan was followed and, if not, which specific provisions were not followed.⁸
 - vi. Actions that have been or will be taken to minimize damage and/or mitigate further compromise.
 - vii. Recommendations to prevent similar situations in the future, including whether the security plan needs to be modified in any way and whether additional training may be required.
- d) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of sensitive information incidents.
 - e) At the Government's discretion, Contractor employees or Subcontractor employees may be identified as no longer eligible to access PII or to work on that contract based on their actions related to the loss or compromise of PII.

(6) Victim Remediation

At DOJ's request, the Contractor is responsible for notifying victims and providing victim remediation services in the event of a breach of PII held by the Contractor, its agents, or its Subcontractors, under this contract. Victim remediation services shall include at least 18 months of credit monitoring and, for serious or large incidents as determined by the Government, call center help desk services for the individuals whose PII was lost or compromised. When DOJ requests notification, the Department Chief Privacy and Civil Liberties Officer and SCOP will direct the Contractor on the method and content of such notification to be sent to individuals whose PII was breached. By performing this work, the Contractor agrees to full cooperation in the event of a breach. The Contractor should be self-insured to the extent necessary to handle any reasonably foreseeable breach, with another source of income, to fully cover the costs of breach response, including but not limited to victim remediation.

C. Government Records Training, Ownership, and Management

(1) Records Management Training and Compliance

- a) The Contractor must ensure that all employees and Subcontractors that have access to PII as well as to those involved in the creation, use, dissemination and/or destruction of PII take the [*DOJ Records and Information Training for New Employees \(RIM\)*](#) training course or another training approved by the Contracting Officer or COR. This training will be provided at the outset of the Subcontractor's/employee's work on the contract and every year thereafter. The

Contractor shall maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required records management training.

- b) The Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records containing PII and those covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format, mode of transmission, or state of completion.

(2) Records Creation, Ownership, and Disposition

- a) The Contractor shall not create or maintain any records not specifically tied to or authorized by the contract using Government IT equipment and/or Government records or that contain Government Agency information. The Contractor shall certify, in writing, the appropriate disposition or return of all Government information at the conclusion of the contract or at a time otherwise specified in the contract. In accordance with 36 CFR 1222.32, the Contractor shall maintain and manage all Federal records created in the course of performing the contract in accordance with Federal law. Records may not be removed from the legal custody of DOJ or destroyed except in accordance with the provisions of the agency records schedules.
- b) Except as stated in the Performance Work Statement and, where applicable, the Contractor's Commercial License Agreement, the Government Agency owns the rights to all electronic information (electronic data, electronic information systems or electronic databases and all supporting documentation and associated metadata created as part of this contract. All deliverables (including all data and records) under the contract are the property of the U.S. Government and may be considered federal records, for which the Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein. The Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.
- c) The Contractor shall not retain, use, sell, disseminate, or dispose of any government data/records or deliverables without the express written permission of the Contracting Officer or Contracting Officer's Representative. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. § 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the Agency records schedules.

D. Data Privacy and Oversight

(1) Restrictions on Testing or Training Using Real Data Containing PII

The use of real data containing PII from any source for testing or training purposes is generally prohibited. The Contractor shall use synthetic or de-identified real data for testing or training whenever feasible.

(2) Requirements for Contractor IT Systems Hosting Government Data

The Contractor is required to obtain an Authority To Operate (ATO) for any IT environment owned or controlled by the Contractor or any Subcontractor on which Government data shall reside for the purposes of IT system development, design, data migration, testing, training, maintenance, use, or disposal.

(3) Requirement to Support Privacy Compliance

- a) If this contract requires the development, maintenance or administration of information technology⁹, the Contractor shall support the completion of the Initial Privacy Assessment (IPA) document, if requested by Department personnel. An IPA is the first step in a process to identify potential privacy issues and mitigate privacy risks. The IPA asks basic questions to help components assess whether additional privacy protections may be needed in designing or implementing a project¹⁰ to mitigate privacy risks, and whether compliance work may be needed. Upon review of the IPA, the OPCL determines whether a Privacy Impact Assessment (PIA) document and/or SORN, or modifications thereto, are required. The Contractor shall provide adequate support to complete the applicable risk assessment and PIA document in a timely manner, and shall ensure that project management plans and schedules include the IPA, PIA, and SORN (to the extent required) as milestones. Additional information on the privacy compliance process at DOJ, including IPAs, PIAs, and SORNs, is located on the DOJ OPCL website (<https://dojnet.doj.gov/privacy/>), including DOJ Order 0601, Privacy and Civil Liberties. The Privacy Impact Assessment Guidance and Template outline the requirements and format for the PIA.
- b) If the contract involves an IT system build or substantial development or changes to an IT system that may require privacy risk assessment and documentation, the Contractor shall provide adequate support to DOJ to ensure DOJ can complete any required assessment, and IPA, PIA, SORN, or other supporting documentation to support privacy compliance. The Contractor shall work with personnel from the program office, OPCL, the Office of the Chief Information Officer (OCIO), and the Office of Records Management and Policy to ensure that the privacy assessments and documentation are kept on schedule, that the answers to questions in the documents are thorough and complete, and that questions asked by the OPCL and other offices are answered in a timely fashion. The Contractor must ensure the completion of required PIAs and documentation of privacy controls consistent with federal law and standards, e.g. NIST 800-53, Rev. 5; and compliance with the Privacy Act of 1974, E-Government Act of 2002, Federal Information Security Modernization Act of 2014, and key OMB

guidelines, e.g., OMB Circular A-130.

(End of Clause)

DOJ-05 Security of Department Information and Systems DOJ-05 (OCT 2023)

2852.233-70 PROTESTS FILED DIRECTLY WITH THE DEPARTMENT OF JUSTICE
(JAN 1998)

(a) The following definitions apply in this provision:

(1) "Agency Protest Official" means the official, other than the contracting officer, designated to review and decide procurement protests filed with a contracting activity of the Department of Justice.

(2) "Deciding Official" means the person chosen by the protestor to decide the agency protest; it may be either the Contracting Officer or the Agency Protest Official.

(3) "Interested Party" means an actual or prospective offeror whose direct economic interest would be affected by the award of a contract or by the failure to award a contract.

(b) A protest filed directly with the Department of Justice must:

(1) Indicate that it is a protest to the agency.

(2) Be filed with the Contracting Officer.

(3) State whether the protestor chooses to have the Contracting Officer or the Agency Protest Official decide the protest. If the protestor is silent on this matter, the Contracting Officer will decide the protest.

(4) Indicate whether the protestor prefers to make an oral or written presentation of arguments in support of the protest to the deciding official.

(5) Include the information required by FAR 33.103(d)(2):

(i) Name, address, facsimile number and telephone number of the protestor.

(ii) Solicitation or contract number.

(iii) Detailed statement of the legal and factual grounds for the protest, to include a description of resulting prejudice to the protestor.

(iv) Copies of relevant documents.

(v) Request for a ruling by the agency.

(vi) Statement as to the form of relief requested.

(vii) All information establishing that the protestor is an interested party for the purpose of filing a protest.

(viii) All information establishing the timeliness of the protest.

(c) An interested party filing a protest with the Department of Justice has the choice of requesting either that the Contracting Officer or the Agency Protest Official decide the protest.

(d) The decision by the Agency Protest Official is an alternative to a decision by the Contracting Officer. The Agency Protest Official will not consider appeals from the Contracting Officer's decision on an agency protest.

(e) The deciding official must conduct a scheduling conference with the protestor within five (5) days after the protest is filed. The scheduling conference will establish deadlines for oral or

written arguments in support of the agency protest and for agency officials to present information in response to the protest issues. The deciding official may hear oral arguments in support of the agency protest at the same time as the scheduling conference, depending on availability of the necessary parties.

(f) Oral conferences may take place either by telephone or in person. Other parties may attend at the discretion of the deciding official.

(g) The protestor has only one opportunity to support or explain the substance of its protest. Department of Justice procedures do not provide for any discovery. The deciding official may request additional information from either the agency or the protestor. The deciding official will resolve the protest through informal presentations or meetings to the maximum extent practicable.

(h) An interested party may represent itself or be represented by legal counsel. The Department of Justice will not reimburse the protester for any legal fees related to the agency protest.

(i) The Department of Justice will stay award or suspend contract performance in accordance with FAR 33.103(f). The stay or suspension, unless over-ridden, remains in effect until the protest is decided, dismissed, or withdrawn.

(j) The deciding official will make a best effort to issue a decision on the protest within twenty (20) days after the filing date. The decision may be oral or written.

(k) The Department of Justice may dismiss or stay proceeding on an agency protest if a protest on the same or similar basis is filed with a protest forum outside the Department of Justice.

2852.233-70 PROTESTS FILED DIRECTLY WITH THE DEPARTMENT OF JUSTICE (JAN 1998)

(a) The following definitions apply in this provision:

(1) "Agency Protest Official" means the official, other than the contracting officer, designated to review and decide procurement protests filed with a contracting activity of the Department of Justice.

(2) "Deciding Official" means the person chosen by the protestor to decide the agency protest; it may be either the Contracting Officer or the Agency Protest Official.

(3) "Interested Party" means an actual or prospective offeror whose direct economic interest would be affected by the award of a contract or by the failure to award a contract.

(b) A protest filed directly with the Department of Justice must:

(1) Indicate that it is a protest to the agency.

(2) Be filed with the Contracting Officer.

(3) State whether the protestor chooses to have the Contracting Officer or the Agency Protest Official decide the protest. If the protestor is silent on this matter, the Contracting Officer will decide the protest.

(4) Indicate whether the protestor prefers to make an oral or written presentation of arguments in support of the protest to the deciding official.

(5) Include the information required by FAR 33.103(d)(2):

(i) Name, address, facsimile number and telephone number of the protestor.

(ii) Solicitation or contract number.

- (iii) Detailed statement of the legal and factual grounds for the protest, to include a description of resulting prejudice to the protestor.
- (iv) Copies of relevant documents.
- (v) Request for a ruling by the agency.
- (vi) Statement as to the form of relief requested.
- (vii) All information establishing that the protestor is an interested party for the purpose of filing a protest.
- (viii) All information establishing the timeliness of the protest.
- (c) An interested party filing a protest with the Department of Justice has the choice of requesting either that the Contracting Officer or the Agency Protest Official decide the protest.
- (d) The decision by the Agency Protest Official is an alternative to a decision by the Contracting Officer. The Agency Protest Official will not consider appeals from the Contracting Officer's decision on an agency protest.
- (e) The deciding official must conduct a scheduling conference with the protestor within five (5) days after the protest is filed. The scheduling conference will establish deadlines for oral or written arguments in support of the agency protest and for agency officials to present information in response to the protest issues. The deciding official may hear oral arguments in support of the agency protest at the same time as the scheduling conference, depending on availability of the necessary parties.
- (f) Oral conferences may take place either by telephone or in person. Other parties may attend at the discretion of the deciding official.
- (g) The protestor has only one opportunity to support or explain the substance of its protest. Department of Justice procedures do not provide for any discovery. The deciding official may request additional information from either the agency or the protestor. The deciding official will resolve the protest through informal presentations or meetings to the maximum extent practicable.
- (h) An interested party may represent itself or be represented by legal counsel. The Department of Justice will not reimburse the protester for any legal fees related to the agency protest.
- (i) The Department of Justice will stay award or suspend contract performance in accordance with FAR 33.103(f). The stay or suspension, unless over-ridden, remains in effect until the protest is decided, dismissed, or withdrawn.
- (j) The deciding official will make a best effort to issue a decision on the protest within twenty (20) days after the filing date. The decision may be oral or written.
- (k) The Department of Justice may dismiss or stay proceeding on an agency protest if a protest on the same or similar basis is filed with a protest forum outside the Department of Justice.

PART III: PROVISIONS

52.204-7, System for Award Management (Nov 2024)

52.212-1, Instructions to Offerors – Commercial Products and Commercial Services (Sept 2023).

52.212-3, Offeror Representations and Certifications - Commercial Products and Commercial Services. (Oct 2025)

The *Offeror shall* complete only paragraph (b) of this provision if the *Offeror* has completed the annual representations and certification electronically in the system for award management (SAM) accessed through <https://www.sam.gov>. If the *Offeror* has not completed the annual representations and certifications electronically, the *Offeror shall* complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, prohibition on *contracting* for certain telecommunications and video surveillance services or equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States* and who are economically disadvantaged in accordance with 13 CFR Part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB program.

Forced or indentured child labor means all work or service—

(1) exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not *offer* himself voluntarily; or

(2) performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an *immediate owner* of the *Offeror*, or that owns or controls one or more entities that control an *immediate owner* of the *Offeror*. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the *Offeror*, that has direct control of the *Offeror*. Indicators of control include, but are not limited to, one or more of the following: ownership or

interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an *inverted domestic corporation* under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any *end product* in product and service codes (PSCS) 1000-9999, except—

- (1) PSC 5510, lumber and related basic wood materials;
- (2) product or service group (PSG) 87, agricultural *supplies*;
- (3) PSG 88, live animals;
- (4) PSG 89, subsistence;
- (5) PSC 9410, crude grades of plant materials;
- (6) PSC 9430, miscellaneous crude animal *products*, inedible;
- (7) PSC 9440, miscellaneous crude agricultural and forestry *products*;
- (8) PSC 9610, ores;
- (9) PSC 9620, minerals, natural and synthetic; and
- (10) PSC 9630, additive metal materials.

Place of manufacture means the place where an *end product* is assembled out of *components*, or otherwise made or processed from raw materials into the finished product that is to be provided to the government. If a product is disassembled and reassembled, the place of reassembly is not the *place of manufacture*.

Predecessor means an entity that is replaced by a *successor* and includes any *predecessors* of the *predecessor*.

Reasonable inquiry has the meaning provided in the clause 52.204-25, prohibition on *contracting* for certain telecommunications and video surveillance services or equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan accountability and divestment act of 2007 (Pub. L. 110-174). *Restricted business operations* do not include business operations that

the person (as that term is defined in Section 2 of the Sudan accountability and divestment act of 2007) conducting the business can demonstrate—

- (1) are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) are conducted pursuant to specific authorization from the office of foreign assets control in the department of the treasury, or are expressly exempted under federal law from the requirement to be conducted under such authorization;
- (3) consist of providing goods or services to marginalized populations of Sudan;
- (4) consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) consist of providing goods or services that are used only to promote health or education; or
- (6) have been voluntarily suspended.

Sensitive technology—

(1) means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) to restrict the free flow of unbiased information in Iran; or
- (ii) to disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to Section 203(b)(3) of the International *Emergency Economic Powers Act* (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a *small business concern*—

- (I) not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) the management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) a *small business concern* eligible under the SDVOSB program in accordance with 13 CFR Part 128 (see Subpart 19.14).

(3) *service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the beneficiary identification and records locator subsystem, or *successor* system that is maintained by the department of veterans affairs' veterans benefits administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB program means an SDVOSB concern that—

(1) effective January 1, 2024, is designated in the *system for award management (SAM)* as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) program means a program that authorizes *contracting officers* to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB program.

Small business concern—

(1) means a concern, including its *affiliates* that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR Part 121 and size standards in this *solicitation*.

(2) *affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the *acquisition*, that—

(1) is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the *United States*; and

(ii) each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) the management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) directly by a parent corporation; or
- (2) through another *subsidiary* of a parent corporation

Successor means an entity that has replaced a *predecessor* by acquiring the assets and carrying out the affairs of the *predecessor* under a new name (often through *acquisition* or merger). The term "*successor*" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the *successor* for the liabilities of the *predecessor* may vary, depending on state law and specific circumstances.

Veteran-owned small business concern means a *small business concern*—

- (1) not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) the management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a *small business concern*—

- (1) that is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

- (2) whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States*, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(B)

- (1) *annual representations and certifications*. Any changes provided by the *Offeror* in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

- (2) the *Offeror* has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the *Offeror* verifies by

submission of this *offer* that the representations and certifications currently posted electronically at far 52.212-3, *Offeror* representations and certifications-*commercial products* and *commercial services*, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this *solicitation* (including the business size standard(s) applicable to the NAICS code(s) referenced for this *solicitation*), at the time this *offer* is submitted and are incorporated in this *offer* by reference (see FAR 4.1201)

(c) *Offerors must* complete the following representations when the resulting contract is for *supplies* to be delivered or services to be performed in the *United States* or its *outlying areas*, or when the *contracting officer* has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *small business concern*. The *Offeror* represents as part of its *offer* that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) it ☐ is, ☒ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b).

(2) *veteran-owned small business concern*. (complete only if the *Offeror* represented itself as a *small business concern* in paragraph (c)(1) of this provision.) The *Offeror* represents as part of its *offer* that it ☐ is, ☐ is not a veteran-owned *small business concern*.

(3) *SDVOSB concern*. (complete only if the *Offeror* represented itself as a veteran-owned *small business concern* in paragraph (c)(2) of this provision.) The *Offeror* represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB program*. The *Offeror* represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB program that complies with the requirements of 13 CFR 128.402.(complete only if the *Offeror* represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.)

(5) *small disadvantaged business concern*. (complete only if the *Offeror* represented itself as a *small business concern* in paragraph (c)(1) of this provision.) The *Offeror* represents that it ☐ is, ☐ is not a *small disadvantaged business concern* as defined in 13 CFR 124.1001.

(6) *women-owned small business concern*. (complete only if the *Offeror* represented itself as a *small business concern* in paragraph (c)(1) of this provision.) The *Offeror* represents that it ☐ is, ☐ is not a women-owned *small business concern*.

(7) *WOSB joint venture eligible under the WOSB program*. The *Offeror* represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).

(8) *economically disadvantaged women-owned small business (EDWOSB) joint venture*. The *Offeror* represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).

Note to paragraphs (c)(9) and (10): complete paragraphs (c)(9) and (10) only if this *solicitation* is expected to exceed the *simplified acquisition threshold*.

(9) *women-owned business concern (other than small business concern)*. (complete only if the *Offeror* is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The *Offeror* represents that it ☐ is a women-owned business concern.

(10) *tie bid priority for labor surplus area concerns*. If this is an invitation for bid, small business *Offerors* may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by *Offeror* or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *hubzone small business concern*. (complete only if the *Offeror* represented itself as a small business concern in paragraph (c)(1) of this provision.) The *Offeror* represents, as part of its offer, that—

(i) it ☐ is, ☐ is not a *hubzone small business concern* listed, on the date of this representation, as having been certified by SBA as a *hubzone small business concern* in the dynamic small business search and SAM, and will attempt to maintain an employment rate of *hubzone* residents of 35 percent of its employees during performance of a *hubzone contract* (see 13 CFR 126.200(e)(1)); and

(ii) it ☐ is, ☐ is not a *hubzone joint venture* that complies with the requirements of 13 CFR 126.616(a) through (c). [*the Offeror shall enter the name and unique entity identifier of each party to the joint venture*]: Each *hubzone small business concern* participating in the *hubzone joint venture* shall provide representation of its *hubzone* status.

(d) representations required to implement provisions of executive order 11246-

(1) previous contracts and compliance. The *Offeror* represents that-

(i) it ☐ has, ☐ has not participated in a previous contract or subcontract subject to the equal opportunity clause of this *solicitation*; and

(ii) it ☐ has, ☐ has not filed all required compliance reports.

(2) *affirmative action compliance*. The *Offeror* represents that-

(i) it ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the secretary of labor (41 CFR parts 60-1 and 60-2), or

(ii) it ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the secretary of labor.

(e) *certification regarding payments to influence federal transactions (31 <http://uscode.house.gov/> U.S.C. 1352).*(applies only if the contract is expected to exceed \$200,000.) By submission of its *offer*, the *Offeror* certifies to the best of its knowledge and belief that no federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a member of congress, an officer or employee of congress or an employee of a member of congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the lobbying disclosure act of 1995 have made a lobbying contact on behalf of the *Offeror* with respect to this contract, the *Offeror shall* complete and submit, with its *offer*, OMB standard form III, disclosure of lobbying activities, to provide the name of the registrants. The *Offeror* need not report regularly employed officers or employees of the *Offeror* to whom payments of reasonable compensation were made.

(f) *Buy American certificate.* (applies only if the clause at federal *acquisition* regulation (far) 52.225-1, buy American-supplies, is included in this *solicitation*.)

(1)

(i) the *Offeror* certifies that each *end product*, except those listed in paragraph (f)(2) of this provision, is a domestic *end product* and that each domestic *end product* listed in paragraph (f)(3) of this provision contains a critical *component*.

(ii) the *Offeror shall* list as foreign *end products* those *end products* manufactured in the *United States* that do not qualify as domestic *end products*. For those foreign *end products* that do not consist wholly or predominantly of iron or steel or a combination of both, the *Offeror shall* also indicate whether these foreign *end products* exceed 55 percent domestic content, except for those that are cots items. If the percentage of the domestic content is unknown, select "no".

(iii) the *Offeror shall* separately list the *line item numbers* of domestic *end products* that contain a critical *component* (see FAR 25.105).

(iv) the terms "commercially available off-the-shelf (cots) item," "critical *component*," "domestic end product," "*end product*," "foreign *end product*," and "*United States*" are defined in the clause of this *solicitation* entitled "buy American-supplies."

**(2) FOREIGN END
PRODUCTS:**

LINE ITEM NO.	COUNTRY OF ORIGIN	EXCEEDS 55% DOMESTIC CONTENT (YES/NO)

(4) THE GOVERNMENT WILL EVALUATE *OFFERS* IN ACCORDANCE WITH THE POLICIES AND PROCEDURES OF FAR PART 25.

(G)

(1) *BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT CERTIFICATE*. (APPLIES ONLY IF THE CLAUSE AT FAR 52.225-3, *BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT*, IS INCLUDED IN THIS *SOLICITATION*.)

(I)

(A) THE *OFFEROR* CERTIFIES THAT EACH *END PRODUCT*, EXCEPT THOSE LISTED IN PARAGRAPH (G)(1)(II) OR (III) OF THIS PROVISION, IS A DOMESTIC END PRODUCT AND THAT EACH DOMESTIC *END PRODUCT* LISTED IN PARAGRAPH (G)(1)(IV) OF THIS PROVISION CONTAINS A CRITICAL *COMPONENT*.

(B) THE TERMS "BAHRAINI, MOROCCAN, OMANI, PANAMANIAN, OR PERUVIAN *END PRODUCT*," "COMMERCIALY AVAILABLE OFF-THE-SHELF(COTS) ITEM," "CRITICAL *COMPONENT*," "DOMESTIC END PRODUCT," "*END PRODUCT*," "FOREIGN END PRODUCT," "FREE TRADE AGREEMENT COUNTRY," "FREE TRADE AGREEMENT COUNTRY *END PRODUCT*," "ISRAELI *END PRODUCT*," AND "*UNITED STATES*" ARE DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED "*BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT*."

(II) THE *OFFEROR* CERTIFIES THAT THE FOLLOWING *SUPPLIES* ARE FREE TRADE AGREEMENT COUNTRY *END PRODUCTS* (OTHER THAN BAHRAINI, MOROCCAN, OMANI, PANAMANIAN, OR PERUVIAN *END PRODUCTS*) OR ISRAELI *END PRODUCTS* AS DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED "*BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT*."

**FREE TRADE
AGREEMENT
COUNTRY *END
PRODUCTS*
(OTHER THAN
BAHRAINI,
MOROCCAN,
OMANI,
PANAMANIAN,
OR PERUVIAN**

**END
PRODUCTS) OR
ISRAELI END
PRODUCTS:**

LINE ITEM NO.

_____	_____
_____	_____
_____	_____
_____	_____

(III) THE *OFFEROR SHALL* LIST THOSE *SUPPLIES* THAT ARE FOREIGN *END PRODUCTS* (OTHER THAN THOSE LISTED IN PARAGRAPH (G)(1)(II) OF THIS PROVISION) AS DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED "BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT. "THE *OFFEROR SHALL* LIST AS OTHER FOREIGN *END PRODUCTS* THOSE *END PRODUCTS* MANUFACTURED IN THE *UNITED STATES* THAT DO NOT QUALIFY AS DOMESTIC *END PRODUCTS*. FOR THOSE FOREIGN *END PRODUCTS* THAT DO NOT CONSIST WHOLLY OR PREDOMINANTLY OF IRON OR STEEL OR A COMBINATION OF BOTH, THE *OFFEROR SHALL* ALSO INDICATE WHETHER THESE FOREIGN *END PRODUCTS* EXCEED 55 PERCENT DOMESTIC CONTENT, EXCEPT FOR THOSE THAT ARE COTS ITEMS. IF THE PERCENTAGE OF THE DOMESTIC CONTENT IS UNKNOWN, SELECT "NO".

**OTHER FOREIGN END
PRODUCTS:**

LINE ITEM NO.	COUNTRY OF ORIGIN	EXCEEDS 55% DOMESTIC CONTENT (YES/NO)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[

(V) THE GOVERNMENT WILL EVALUATE *OFFERS* IN ACCORDANCE WITH THE POLICIES AND PROCEDURES OF FAR PART 25.

(2) *BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT CERTIFICATE, ALTERNATE II*. IF *ALTERNATE II* TO THE CLAUSE AT FAR52.225-3 IS INCLUDED IN THIS *SOLICITATION*, SUBSTITUTE THE FOLLOWING PARAGRAPH (G)(1)(II) FOR PARAGRAPH (G)(1)(II) OF THE BASIC PROVISION:

(G)(1)(II) THE *OFFEROR* CERTIFIES THAT THE FOLLOWING *SUPPLIES* ARE ISRAELI *END PRODUCTS* AS DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED “BUY AMERICAN—FREE TRADE AGREEMENTS—ISRAELI TRADE ACT”:

*ISRAELI
END
PRODUCTS*
:

*LINE ITEM
NO.*

—

—

[*LIST AS NECESSARY*]

(3) *BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT CERTIFICATE, ALTERNATE III*. IF *ALTERNATE III* TO THE CLAUSE AT52.225-3 IS INCLUDED IN THIS *SOLICITATION*, SUBSTITUTE THE FOLLOWING PARAGRAPHS (G)(1)(I)(B) AND (G)(1)(II) FOR PARAGRAPHS (G)(1)(I)(B) AND (G)(1)(II) OF THE BASIC PROVISION:

(G)(1)(I)(B) THE TERMS “KOREAN *END PRODUCT*”, “*COMMERCIALLY AVAILABLE OFF-THE-SHELF (COTS) ITEM*,” “*CRITICAL COMPONENT*,” “*DOMESTIC END PRODUCT*,” “*END PRODUCT*,” “*FOREIGN END PRODUCT*,” “*FREE TRADE AGREEMENT COUNTRY*,” “*FREE TRADE AGREEMENT COUNTRY END PRODUCT*,” “*ISRAELI END PRODUCT*,” AND “*UNITED STATES*” ARE DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED “BUY AMERICAN—FREE TRADE AGREEMENTS—ISRAELI TRADE ACT.”

(G)(1)(II) THE *OFFEROR* CERTIFIES THAT THE FOLLOWING *SUPPLIES* ARE KOREAN *END PRODUCTS* OR ISRAELI *END PRODUCTS* AS DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED “BUY AMERICAN—FREE TRADE AGREEMENTS—ISRAELI TRADE ACT”:

KOREAN *END
PRODUCTS* OR
ISRAELI *END
PRODUCTS*: COUNTRY OF ORIGIN
LINE ITEM NO.

—

[LIST AS NECESSARY]

(4) *TRADE AGREEMENTS CERTIFICATE.* (APPLIES ONLY IF THE CLAUSE AT FAR 52.225-5, TRADE AGREEMENTS, IS INCLUDED IN THIS *SOLICITATION*.)

(I) THE *OFFEROR* CERTIFIES THAT EACH *END PRODUCT*, EXCEPT THOSE LISTED IN PARAGRAPH (G)(4)(II) OF THIS PROVISION, IS A U.S.-MADE OR DESIGNATED COUNTRY *END PRODUCT*, AS DEFINED IN THE CLAUSE OF THIS *SOLICITATION* ENTITLED "TRADE AGREEMENTS."

(II) THE *OFFEROR* SHALL LIST AS OTHER *END PRODUCTS* THOSE *END PRODUCTS* THAT ARE NOT U.S.-MADE OR DESIGNATED COUNTRY *END PRODUCTS*.

OTHER END PRODUCTS:

<i>LINE ITEM NO.</i>	<i>COUNTRY OF ORIGIN</i>
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[LIST AS NECESSARY]

(III) THE GOVERNMENT WILL EVALUATE *OFFERS* IN ACCORDANCE WITH THE POLICIES AND PROCEDURES OF FAR PART 25. FOR LINE ITEMS COVERED BY THE WTO GPA, THE GOVERNMENT WILL EVALUATE *OFFERS* OF U.S.-MADE OR DESIGNATED COUNTRY *END PRODUCTS* WITHOUT REGARD TO THE RESTRICTIONS OF THE BUY AMERICAN STATUTE. THE GOVERNMENT WILL CONSIDER FOR AWARD ONLY *OFFERS* OF U.S.-MADE OR DESIGNATED COUNTRY *END PRODUCTS* UNLESS THE *CONTRACTING OFFICER* DETERMINES THAT THERE ARE NO *OFFERS* FOR SUCH *PRODUCTS* OR THAT THE *OFFERS* FOR SUCH *PRODUCTS* ARE INSUFFICIENT TO FULFILL THE REQUIREMENTS OF THE *SOLICITATION*.

(H) *CERTIFICATION REGARDING RESPONSIBILITY MATTERS (EXECUTIVE ORDER 12689).* (APPLIES ONLY IF THE CONTRACT VALUE IS EXPECTED TO EXCEED THE *SIMPLIFIED ACQUISITION THRESHOLD*.) THE *OFFEROR*

CERTIFIES, TO THE BEST OF ITS KNOWLEDGE AND BELIEF, THAT THE OFFEROR AND/OR ANY OF ITS PRINCIPALS—

(1) ☐ ARE, ☐ ARE NOT PRESENTLY DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR DECLARED *INELIGIBLE* FOR THE AWARD OF CONTRACTS BY ANY FEDERAL AGENCY;

(2) ☐ HAVE, ☐ HAVE NOT, WITHIN A THREE-YEAR PERIOD PRECEDING THIS OFFER, BEEN CONVICTED OF OR HAD A CIVIL JUDGMENT RENDERED AGAINST THEM FOR: COMMISSION OF FRAUD OR A CRIMINAL OFFENSE IN CONNECTION WITH OBTAINING, ATTEMPTING TO OBTAIN, OR PERFORMING A FEDERAL, STATE OR LOCAL GOVERNMENT CONTRACT OR SUBCONTRACT; VIOLATION OF FEDERAL OR STATE ANTITRUST STATUTES RELATING TO THE SUBMISSION OF *OFFERS*; OR COMMISSION OF EMBEZZLEMENT, THEFT, FORGERY, BRIBERY, FALSIFICATION OR DESTRUCTION OF RECORDS, MAKING FALSE STATEMENTS, TAX EVASION, VIOLATING FEDERAL CRIMINAL TAX LAWS, OR RECEIVING STOLEN PROPERTY;

(3) ☐ ARE, ☐ ARE NOT PRESENTLY INDICTED FOR, OR OTHERWISE CRIMINALLY OR CIVILLY CHARGED BY A GOVERNMENT ENTITY WITH, COMMISSION OF ANY OF THESE OFFENSES ENUMERATED IN PARAGRAPH (H)(2) OF THIS CLAUSE; AND

(4) ☐ HAVE, ☐ HAVE NOT, WITHIN A THREE-YEAR PERIOD PRECEDING THIS OFFER, BEEN NOTIFIED OF ANY DELINQUENT FEDERAL TAXES IN AN AMOUNT THAT EXCEEDS THE THRESHOLD AT 9.104-5(A)(2) FOR WHICH THE LIABILITY REMAINS UNSATISFIED.

(I) TAXES ARE CONSIDERED DELINQUENT IF BOTH OF THE FOLLOWING CRITERIA APPLY:

(A) *THE TAX LIABILITY IS FINALLY DETERMINED.* THE LIABILITY IS FINALLY DETERMINED IF IT HAS BEEN ASSESSED. A LIABILITY IS NOT FINALLY DETERMINED IF THERE IS A PENDING ADMINISTRATIVE OR JUDICIAL CHALLENGE. IN THE CASE OF A JUDICIAL CHALLENGE TO THE LIABILITY, THE LIABILITY IS NOT FINALLY DETERMINED UNTIL ALL JUDICIAL APPEAL RIGHTS HAVE BEEN EXHAUSTED.

(B) *THE TAXPAYER IS DELINQUENT IN MAKING PAYMENT.* A TAXPAYER IS DELINQUENT IF THE TAXPAYER HAS FAILED TO PAY THE TAX LIABILITY WHEN FULL PAYMENT WAS DUE AND REQUIRED. A TAXPAYER IS NOT DELINQUENT IN CASES WHERE ENFORCED COLLECTION ACTION IS PRECLUDED.

(II) *EXAMPLES.*

(A) THE TAXPAYER HAS RECEIVED A STATUTORY NOTICE OF DEFICIENCY, UNDER I.R.C. §6212, WHICH ENTITLES THE TAXPAYER TO SEEK TAX COURT REVIEW OF A PROPOSED TAX DEFICIENCY. THIS IS NOT A DELINQUENT TAX BECAUSE IT IS NOT A FINAL TAX LIABILITY. *SHOULD* THE TAXPAYER SEEK TAX COURT REVIEW, THIS WILL NOT BE A FINAL TAX LIABILITY UNTIL THE TAXPAYER HAS EXERCISED ALL JUDICIAL APPEAL RIGHTS.

(B) THE IRS HAS FILED A NOTICE OF FEDERAL TAX LIEN WITH RESPECT TO AN ASSESSED TAX LIABILITY, AND THE TAXPAYER HAS BEEN ISSUED A NOTICE UNDER I.R.C. §6320 ENTITLING THE TAXPAYER TO REQUEST A HEARING WITH THE IRS OFFICE OF APPEALS CONTESTING THE LIEN FILING, AND TO FURTHER APPEAL TO THE TAX COURT IF THE IRS DETERMINES TO SUSTAIN THE LIEN FILING. IN THE COURSE OF THE HEARING, THE TAXPAYER IS ENTITLED TO CONTEST THE UNDERLYING TAX LIABILITY BECAUSE THE TAXPAYER HAS HAD NO PRIOR OPPORTUNITY TO CONTEST THE LIABILITY. THIS IS NOT A DELINQUENT TAX BECAUSE IT IS NOT A FINAL TAX LIABILITY. *SHOULD* THE TAXPAYER SEEK TAX COURT REVIEW, THIS WILL NOT BE A FINAL TAX LIABILITY UNTIL THE TAXPAYER HAS EXERCISED ALL JUDICIAL APPEAL RIGHTS.

(C) THE TAXPAYER HAS ENTERED INTO AN INSTALLMENT AGREEMENT PURSUANT TO I.R.C. §6159. THE TAXPAYER IS MAKING TIMELY PAYMENTS AND IS IN FULL COMPLIANCE WITH THE AGREEMENT TERMS. THE TAXPAYER IS NOT DELINQUENT BECAUSE THE TAXPAYER IS NOT CURRENTLY REQUIRED TO MAKE FULL PAYMENT.

(D) THE TAXPAYER HAS FILED FOR BANKRUPTCY PROTECTION. THE TAXPAYER IS NOT DELINQUENT BECAUSE ENFORCED COLLECTION ACTION IS STAYED UNDER 11 U.S.C. §362 (THE BANKRUPTCY CODE).

(I) CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS (EXECUTIVE ORDER 13126). [THE CONTRACTING OFFICER MUST LIST IN PARAGRAPH (I)(1) ANY END PRODUCTS BEING ACQUIRED UNDER THIS SOLICITATION THAT ARE INCLUDED IN THE LIST OF PRODUCTS REQUIRING CONTRACTOR CERTIFICATION AS TO FORCED OR INDENTURED CHILD LABOR, UNLESS EXCLUDED AT 22.1503(B).

/

*(1) LISTED END
PRODUCTS*

LISTED COUNTRIES
OF ORIGIN

·
LISTED END
PRODUCT

(2) CERTIFICATION. [IF THE CONTRACTING OFFICER HAS IDENTIFIED END PRODUCTS AND COUNTRIES OF ORIGIN IN PARAGRAPH (I)(1) OF THIS PROVISION, THEN THE OFFEROR MUST CERTIFY TO EITHER (I)(2)(I) OR (I)(2)(II) BY CHECKING THE APPROPRIATE BLOCK.]

☐ (I) THE OFFEROR WILL NOT SUPPLY ANY END PRODUCT LISTED IN PARAGRAPH (I)(1) OF THIS PROVISION THAT WAS MINED, PRODUCED, OR MANUFACTURED IN THE CORRESPONDING COUNTRY AS LISTED FOR THAT PRODUCT.

☐ (II) THE OFFEROR MAY SUPPLY AN END PRODUCT LISTED IN PARAGRAPH (I)(1) OF THIS PROVISION THAT WAS MINED, PRODUCED, OR MANUFACTURED IN THE CORRESPONDING COUNTRY AS LISTED FOR THAT PRODUCT. THE OFFEROR CERTIFIES THAT IT HAS MADE A GOOD FAITH EFFORT TO DETERMINE WHETHER FORCED OR INDENTURED CHILD LABOR WAS USED TO MINE, PRODUCE, OR MANUFACTURE ANY SUCH END PRODUCT FURNISHED UNDER THIS CONTRACT. ON THE BASIS OF THOSE EFFORTS, THE OFFEROR CERTIFIES THAT IT IS NOT AWARE OF ANY SUCH USE OF CHILD LABOR.

(J) PLACE OF MANUFACTURE. (DOES NOT APPLY UNLESS THE SOLICITATION IS PREDOMINANTLY FOR THE ACQUISITION OF MANUFACTURED END PRODUCTS.) FOR STATISTICAL PURPOSES ONLY, THE OFFEROR SHALL INDICATE WHETHER THE PLACE OF MANUFACTURE OF THE END PRODUCTS IT EXPECTS TO PROVIDE IN RESPONSE TO THIS SOLICITATION IS PREDOMINANTLY-

(1) ☐ IN THE UNITED STATES (CHECK THIS BOX IF THE TOTAL ANTICIPATED PRICE OF OFFERED END PRODUCTS MANUFACTURED IN THE UNITED STATES EXCEEDS THE TOTAL ANTICIPATED PRICE OF OFFERED END PRODUCTS MANUFACTURED OUTSIDE THE UNITED STATES); OR

(2) ☐ OUTSIDE THE UNITED STATES.

(K) CERTIFICATES REGARDING EXEMPTIONS FROM THE APPLICATION OF THE SERVICE CONTRACT LABOR STANDARDS (CERTIFICATION BY THE OFFEROR AS TO ITS COMPLIANCE WITH RESPECT TO THE CONTRACT ALSO CONSTITUTES ITS CERTIFICATION AS TO COMPLIANCE BY ITS SUBCONTRACTOR IF IT SUBCONTRACTS OUT THE EXEMPT SERVICES.) [THE CONTRACTING OFFICER IS TO CHECK A BOX TO INDICATE IF PARAGRAPH(K)(1) OR (K)(2) APPLIES.]

☐ (1) MAINTENANCE, CALIBRATION, OR REPAIR OF CERTAIN EQUIPMENT AS DESCRIBED IN FAR 22.1003-4(C)(1). THE OFFEROR ☐ DOES ☐ DOES NOT CERTIFY THAT-

(I) THE ITEMS OF EQUIPMENT TO BE SERVICED UNDER THIS CONTRACT ARE USED REGULARLY FOR OTHER THAN GOVERNMENTAL PURPOSES AND ARE

SOLD OR TRADED BY THE *OFFEROR* (OR SUBCONTRACTOR IN THE CASE OF AN EXEMPT SUBCONTRACT) IN SUBSTANTIAL QUANTITIES TO THE GENERAL PUBLIC IN THE COURSE OF NORMAL BUSINESS OPERATIONS;

(II) THE SERVICES WILL BE FURNISHED AT PRICES WHICH ARE, OR ARE BASED ON, ESTABLISHED CATALOG OR MARKET PRICES (SEE FAR22.1003-4(C)(2)(II)) FOR THE MAINTENANCE, CALIBRATION, OR REPAIR OF SUCH EQUIPMENT; AND

(III) THE COMPENSATION (WAGE AND FRINGE BENEFITS) PLAN FOR ALL SERVICE EMPLOYEES PERFORMING WORK UNDER THE CONTRACT WILL BE THE SAME AS THAT USED FOR THESE EMPLOYEES AND EQUIVALENT EMPLOYEES SERVICING THE SAME EQUIPMENT OF COMMERCIAL CUSTOMERS.

☐ (2) *CERTAIN SERVICES AS DESCRIBED IN FAR 22.1003-4(D)(1). THE *OFFEROR* ☐ DOES ☐ DOES NOT CERTIFY THAT-*

(I) THE SERVICES UNDER THE CONTRACT ARE OFFERED AND SOLD REGULARLY TO NON-GOVERNMENTAL CUSTOMERS, AND ARE PROVIDED BY THE *OFFEROR* (OR SUBCONTRACTOR IN THE CASE OF AN EXEMPT SUBCONTRACT) TO THE GENERAL PUBLIC IN SUBSTANTIAL QUANTITIES IN THE COURSE OF NORMAL BUSINESS OPERATIONS;

(II) THE CONTRACT SERVICES WILL BE FURNISHED AT PRICES THAT ARE, OR ARE BASED ON, ESTABLISHED CATALOG OR MARKET PRICES (SEE FAR22.1003-4(D)(2)(III));

(III) EACH SERVICE EMPLOYEE WHO WILL PERFORM THE SERVICES UNDER THE CONTRACT WILL SPEND ONLY A SMALL PORTION OF HIS OR HER TIME (A MONTHLY AVERAGE OF LESS THAN 20 PERCENT OF THE AVAILABLE HOURS ON AN ANNUALIZED BASIS, OR LESS THAN 20 PERCENT OF AVAILABLE HOURS DURING THE CONTRACT PERIOD IF THE CONTRACT PERIOD IS LESS THAN A MONTH) SERVICING THE GOVERNMENT CONTRACT; AND

(IV) THE COMPENSATION (WAGE AND FRINGE BENEFITS) PLAN FOR ALL SERVICE EMPLOYEES PERFORMING WORK UNDER THE CONTRACT IS THE SAME AS THAT USED FOR THESE EMPLOYEES AND EQUIVALENT EMPLOYEES SERVICING COMMERCIAL CUSTOMERS.

(3) IF PARAGRAPH (K)(1) OR (K)(2) OF THIS CLAUSE APPLIES—

(I) IF THE *OFFEROR* DOES NOT CERTIFY TO THE CONDITIONS IN PARAGRAPH (K)(1) OR (K)(2) AND THE *CONTRACTING OFFICER* DID NOT ATTACH A SERVICE CONTRACT LABOR STANDARDS WAGE DETERMINATION TO THE

SOLICITATION, THE OFFEROR SHALL NOTIFY THE CONTRACTING OFFICER ASSOON AS POSSIBLE; AND

(II) THE CONTRACTING OFFICER MAY NOT MAKE AN AWARD TO THE OFFEROR IF THE OFFEROR FAILS TO EXECUTE THE CERTIFICATION IN PARAGRAPH (K)(1) OR (K)(2) OF THIS CLAUSE OR TO CONTACT THE CONTRACTING OFFICER AS REQUIRED IN PARAGRAPH (K)(3)(I) OF THIS CLAUSE.

(L) TAXPAYER IDENTIFICATION NUMBER (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (NOT APPLICABLE IF THE OFFEROR IS REQUIRED TO PROVIDE THIS INFORMATION TO THE SAM TO BE ELIGIBLE FOR AWARD.)

(1) ALL OFFERORS MUST SUBMIT THE INFORMATION REQUIRED IN PARAGRAPHS (L)(3) THROUGH (L)(5) OF THIS PROVISION TO COMPLY WITH DEBT COLLECTION REQUIREMENTS OF 31 U.S.C. 7701(C) AND 3325(D), REPORTING REQUIREMENTS OF 26 U.S.C. 6041, 6041A, AND 6050M, AND IMPLEMENTING REGULATIONS ISSUED BY THE INTERNAL REVENUE SERVICE (IRS).

(2) THE TIN MAY BE USED BY THE GOVERNMENT TO COLLECT AND REPORT ON ANY DELINQUENT AMOUNTS ARISING OUT OF THE OFFEROR'S RELATIONSHIP WITH THE GOVERNMENT (31 U.S.C. 7701(C)(3)). IF THE RESULTING CONTRACT IS SUBJECT TO THE PAYMENT REPORTING REQUIREMENTS DESCRIBED IN FAR 4.904, THE TIN PROVIDED HEREUNDER MAY BE MATCHED WITH IRS RECORDS TO VERIFY THE ACCURACY OF THE OFFEROR'S TIN.

(3) TAXPAYER IDENTIFICATION NUMBER (TIN).

☐ TIN: _____.

☐ TIN HAS BEEN APPLIED FOR.

☐ TIN IS NOT REQUIRED BECAUSE:

☐ OFFEROR IS A NONRESIDENT ALIEN, FOREIGN CORPORATION, OR FOREIGN PARTNERSHIP THAT DOES NOT HAVE INCOME EFFECTIVELY CONNECTED WITH THE CONDUCT OF A TRADE OR BUSINESS IN THE UNITED STATES AND DOES NOT HAVE AN OFFICE OR PLACE OF BUSINESS OR A FISCAL PAYING AGENT IN THE UNITED STATES;

☐ OFFEROR IS AN AGENCY OR INSTRUMENTALITY OF A FOREIGN GOVERNMENT;

☐ **OFFEROR IS AN AGENCY OR INSTRUMENTALITY OF THE FEDERAL GOVERNMENT.**

(4) TYPE OF ORGANIZATION.

☐ **SOLE PROPRIETORSHIP;**

☐ **PARTNERSHIP;**

☐ **CORPORATE ENTITY (NOT TAX-EXEMPT);**

☐ **CORPORATE ENTITY (TAX-EXEMPT);**

☐ **GOVERNMENT ENTITY (FEDERAL, STATE, OR LOCAL);**

☐ **FOREIGN GOVERNMENT;**

☐ **INTERNATIONAL ORGANIZATION PER 26 CFR1.6049-4;**

☐ **OTHER _____.**

(5) COMMON PARENT.

☐ **OFFEROR IS NOT OWNED OR CONTROLLED BY A COMMON PARENT;**

☐ **NAME AND TIN OF COMMON PARENT:**

NAME _____.

TIN _____.

(M) RESTRICTED BUSINESS OPERATIONS IN SUDAN. BY SUBMISSION OF ITS OFFER, THE OFFEROR CERTIFIES THAT THE OFFEROR DOES NOT CONDUCT ANY RESTRICTED BUSINESS OPERATIONS IN SUDAN.

(N) PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS.

(1) GOVERNMENT AGENCIES ARE NOT PERMITTED TO USE APPROPRIATED (OR OTHERWISE MADE AVAILABLE) FUNDS FOR CONTRACTS WITH EITHER AN INVERTED DOMESTIC CORPORATION, OR A SUBSIDIARY OF AN INVERTED DOMESTIC CORPORATION, UNLESS THE EXCEPTION AT 9.108-2(B) APPLIES OR THE REQUIREMENT IS WAIVED IN ACCORDANCE WITH THE PROCEDURES AT 9.108-4.

(2) REPRESENTATION. THE OFFEROR REPRESENTS THAT–

(I) IT ☐ IS, ☐ IS NOT AN INVERTED DOMESTIC CORPORATION; AND

(II) IT ☐ IS, ☐ IS NOT A *SUBSIDIARY* OF AN *INVERTED DOMESTIC CORPORATION*.

(O) PROHIBITION ON *CONTRACTING* WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN.

(1) THE OFFEROR SHALL E-MAIL QUESTIONS CONCERNING *SENSITIVE TECHNOLOGY* TO THE DEPARTMENT OF STATE ATCISADA106@STATE.GOV.

(2) REPRESENTATION AND CERTIFICATIONS. UNLESS A WAIVER IS GRANTED OR AN EXCEPTION APPLIES AS PROVIDED IN PARAGRAPH (O)(3) OF THIS PROVISION, BY SUBMISSION OF ITS OFFER, THE OFFEROR–

(I) REPRESENTS, TO THE BEST OF ITS KNOWLEDGE AND BELIEF, THAT THE OFFEROR DOES NOT EXPORT ANY *SENSITIVE TECHNOLOGY* TO THE GOVERNMENT OF IRAN OR ANY ENTITIES OR INDIVIDUALS OWNED OR CONTROLLED BY, OR ACTING ON BEHALF OR AT THE DIRECTION OF, THE GOVERNMENT OF IRAN;

(II) CERTIFIES THAT THE OFFEROR, OR ANY PERSON OWNED OR CONTROLLED BY THE OFFEROR, DOES NOT ENGAGE IN ANY ACTIVITIES FOR WHICH SANCTIONS *MAY* BE IMPOSED UNDER SECTION 5 OF THE IRAN SANCTIONS ACT; AND

(III) CERTIFIES THAT THE OFFEROR, AND ANY PERSON OWNED OR CONTROLLED BY THE OFFEROR, DOES NOT KNOWINGLY ENGAGE IN ANY TRANSACTION THAT EXCEEDS THE THRESHOLD AT FAR 25.703-2(A)(2) WITH IRAN’S REVOLUTIONARY GUARD CORPS OR ANY OF ITS OFFICIALS, AGENTS, OR *AFFILIATES*, THE PROPERTY AND INTERESTS IN PROPERTY OF WHICH ARE BLOCKED PURSUANT TO THE INTERNATIONAL *EMERGENCY* ECONOMIC POWERS ACT (ET SEQ.) (SEE OFAC’S SPECIALLY DESIGNATED NATIONALS AND BLOCKED PERSONS LIST AT [HTTPS://WWW.TREASURY.GOV/RESOURCE-CENTER/SANCTIONS/SDN-LIST/PAGES/DEFAULT.ASPX](https://www.treasury.gov/resource-center/sanctions/SDN-LIST/PAGES/DEFAULT.ASPX)).

(3) THE REPRESENTATION AND CERTIFICATION REQUIREMENTS OF PARAGRAPH (O)(2) OF THIS PROVISION DO NOT APPLY IF–

(I) THIS *SOLICITATION* INCLUDES A TRADE AGREEMENTS CERTIFICATION (*E.G.*, 52.212-3(G) OR A COMPARABLE AGENCY PROVISION); AND

(II) THE OFFEROR HAS CERTIFIED THAT ALL THE OFFERED *PRODUCTS* TO BE SUPPLIED ARE DESIGNATED COUNTRY *END PRODUCTS*.

(P) OWNERSHIP OR CONTROL OF OFFEROR. (APPLIES IN ALL SOLICITATIONS WHEN THERE IS A REQUIREMENT TO BE REGISTERED IN SAM OR A REQUIREMENT TO HAVE A *UNIQUE ENTITY IDENTIFIER* IN THE SOLICITATION).

(1) THE *OFFEROR* REPRESENTS THAT IT ☐ HAS OR ☐ DOES NOT HAVE AN *IMMEDIATE OWNER*. IF THE *OFFEROR* HAS MORE THAN ONE *IMMEDIATE OWNER* (SUCH AS A JOINT VENTURE), THEN THE *OFFEROR SHALL* RESPOND TO PARAGRAPH (2) AND IF APPLICABLE, PARAGRAPH (3) OF THIS PROVISION FOR EACH PARTICIPANT IN THE JOINT VENTURE.

(2) IF THE *OFFEROR* INDICATES "HAS" IN PARAGRAPH (P)(1) OF THIS PROVISION, ENTER THE FOLLOWING INFORMATION:

***IMMEDIATE OWNER CAGE CODE:* _____.**

***IMMEDIATE OWNER LEGAL NAME:* _____.**

(DO NOT USE A "DOING BUSINESS AS" NAME)

IS THE *IMMEDIATE OWNER* OWNED OR CONTROLLED BY ANOTHER ENTITY: ☐ YES OR ☐ NO.

(3) IF THE *OFFEROR* INDICATES "YES" IN PARAGRAPH (P)(2) OF THIS PROVISION, INDICATING THAT THE *IMMEDIATE OWNER* IS OWNED OR CONTROLLED BY ANOTHER ENTITY, THEN ENTER THE FOLLOWING INFORMATION:

***HIGHEST-LEVEL OWNER CAGE CODE:* _____.**

***HIGHEST-LEVEL OWNER LEGAL NAME:* _____.**

(DO NOT USE A "DOING BUSINESS AS" NAME)

(Q) REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW.

(1) AS REQUIRED BY SECTIONS 744 AND 745 OF DIVISION E OF THE CONSOLIDATED AND FURTHER CONTINUING APPROPRIATIONS ACT, 2015 (PUB. L. 113-235), AND SIMILAR PROVISIONS, IF CONTAINED IN SUBSEQUENT APPROPRIATIONS ACTS, THE GOVERNMENT WILL NOT ENTER INTO A CONTRACT WITH ANY CORPORATION THAT—

(I) HAS ANY UNPAID FEDERAL TAX LIABILITY THAT HAS BEEN ASSESSED, FOR WHICH ALL JUDICIAL AND ADMINISTRATIVE REMEDIES HAVE BEEN EXHAUSTED OR HAVE LAPSED, AND THAT IS NOT BEING PAID IN A TIMELY MANNER PURSUANT TO AN AGREEMENT WITH THE AUTHORITY RESPONSIBLE FOR COLLECTING THE TAX LIABILITY, WHERE THE AWARING AGENCY IS AWARE OF THE UNPAID TAX LIABILITY, UNLESS AN AGENCY HAS CONSIDERED *SUSPENSION* OR *DEBARMENT* OF THE

CORPORATION AND MADE A DETERMINATION THAT *SUSPENSION* OR *DEBARMENT* IS NOT NECESSARY TO PROTECT THE INTERESTS OF THE GOVERNMENT; OR

(II) WAS CONVICTED OF A FELONY CRIMINAL VIOLATION UNDER ANY FEDERAL LAW WITHIN THE PRECEDING 24 MONTHS, WHERE THE AWARING AGENCY IS AWARE OF THE *CONVICTION*, UNLESS AN AGENCY HAS CONSIDERED *SUSPENSION* OR *DEBARMENT* OF THE CORPORATION AND MADE A DETERMINATION THAT THIS ACTION IS NOT NECESSARY TO PROTECT THE INTERESTS OF THE GOVERNMENT.

(2) THE *OFFEROR* REPRESENTS THAT–

(I) IT IS ☐ IS NOT ☐ A CORPORATION THAT HAS ANY UNPAID FEDERAL TAX LIABILITY THAT HAS BEEN ASSESSED, FOR WHICH ALL JUDICIAL AND ADMINISTRATIVE REMEDIES HAVE BEEN EXHAUSTED OR HAVE LAPSED, AND THAT IS NOT BEING PAID IN A TIMELY MANNER PURSUANT TO AN AGREEMENT WITH THE AUTHORITY RESPONSIBLE FOR COLLECTING THE TAX LIABILITY; AND

(II) IT IS ☐ IS NOT ☐ A CORPORATION THAT WAS CONVICTED OF A FELONY CRIMINAL VIOLATION UNDER A FEDERAL LAW WITHIN THE PRECEDING 24 MONTHS.

(R) *PREDECESSOR OF OFFEROR*. (APPLIES IN ALL *SOLICITATIONS* THAT INCLUDE THE PROVISION AT 52.204-16, COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING.)

(1) THE *OFFEROR* REPRESENTS THAT IT ☐ IS OR ☐ IS NOT A *SUCCESSOR* TO A *PREDECESSOR* THAT HELD A FEDERAL CONTRACT OR GRANT WITHIN THE LAST THREE YEARS.

(2) IF THE *OFFEROR* HAS INDICATED "IS" IN PARAGRAPH (R)(1) OF THIS PROVISION, ENTER THE FOLLOWING INFORMATION FOR ALL *PREDECESSORS* THAT HELD A FEDERAL CONTRACT OR GRANT WITHIN THE LAST THREE YEARS (IF MORE THAN ONE *PREDECESSOR*, LIST IN REVERSE CHRONOLOGICAL ORDER):

***PREDECESSOR* CAGE CODE: (OR MARK "UNKNOWN").**

***PREDECESSOR* LEGAL NAME: ____.**

(DO NOT USE A "DOING BUSINESS AS" NAME).

(S) [RESERVED].

(T) *PUBLIC DISCLOSURE OF GREENHOUSE GAS EMISSIONS AND REDUCTION GOALS.* APPLIES IN ALL *SOLICITATIONS* THAT REQUIRE *OFFERORS* TO REGISTER IN SAM (12.301(D)(1)).

(1) THIS REPRESENTATION *SHALL* BE COMPLETED IF THE *OFFEROR* RECEIVED \$7.5 MILLION OR MORE IN CONTRACT AWARDS IN THE PRIOR FEDERAL FISCAL YEAR. THE REPRESENTATION IS OPTIONAL IF THE *OFFEROR* RECEIVED LESS THAN \$7.5 MILLION IN FEDERAL CONTRACT AWARDS IN THE PRIOR FEDERAL FISCAL YEAR.

(2) REPRESENTATION. [*OFFEROR* TO CHECK APPLICABLE BLOCK(S) IN PARAGRAPH (T)(2)(I) AND (II)].

(I) THE *OFFEROR* (ITSELF OR THROUGH ITS *IMMEDIATE OWNER* OR HIGHEST-LEVEL OWNER) ☐ DOES, ☐ DOES NOT PUBLICLY DISCLOSE GREENHOUSE GAS EMISSIONS, I.E., MAKES AVAILABLE ON A PUBLICLY ACCESSIBLE WEBSITE THE RESULTS OF A GREENHOUSE GAS INVENTORY, PERFORMED IN ACCORDANCE WITH AN ACCOUNTING STANDARD WITH PUBLICLY AVAILABLE AND CONSISTENTLY APPLIED CRITERIA, SUCH AS THE GREENHOUSE GAS PROTOCOL CORPORATE STANDARD.

(II) THE *OFFEROR* (ITSELF OR THROUGH ITS *IMMEDIATE OWNER* OR HIGHEST-LEVEL OWNER) ☐ DOES, ☐ DOES NOT PUBLICLY DISCLOSE A QUANTITATIVE GREENHOUSE GAS EMISSIONS REDUCTION GOAL, I.E., MAKE AVAILABLE ON A PUBLICLY ACCESSIBLE WEBSITE A TARGET TO REDUCE ABSOLUTE EMISSIONS OR EMISSIONS INTENSITY BY A SPECIFIC QUANTITY OR PERCENTAGE.

(III) A PUBLICLY ACCESSIBLE WEBSITE INCLUDES THE *OFFEROR'S* OWN WEBSITE OR A RECOGNIZED, THIRD-PARTY GREENHOUSE GAS EMISSIONS REPORTING PROGRAM.

(3) IF THE *OFFEROR* CHECKED "DOES" IN PARAGRAPHS (T)(2)(I) OR (T)(2)(II) OF THIS PROVISION, RESPECTIVELY, THE *OFFEROR SHALL* PROVIDE THE PUBLICLY ACCESSIBLE WEBSITE(S) WHERE GREENHOUSE GAS EMISSIONS AND/OR REDUCTION GOALS ARE REPORTED:_____.

(U)

(1) IN ACCORDANCE WITH SECTION 743 OF DIVISION E, TITLE VII, OF THE CONSOLIDATED AND FURTHER CONTINUING APPROPRIATIONS ACT, 2015 (PUB. L. 113-235) AND ITS *SUCCESSOR* PROVISIONS IN SUBSEQUENT APPROPRIATIONS ACTS (AND AS EXTENDED IN CONTINUING RESOLUTIONS), GOVERNMENT AGENCIES ARE NOT PERMITTED TO USE APPROPRIATED (OR OTHERWISE MADE AVAILABLE) FUNDS FOR CONTRACTS WITH AN ENTITY

THAT REQUIRES EMPLOYEES OR SUBCONTRACTORS OF SUCH ENTITY SEEKING TO REPORT WASTE, FRAUD, OR ABUSE TO SIGN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS PROHIBITING OR OTHERWISE RESTRICTING SUCH EMPLOYEES OR SUBCONTRACTORS FROM LAWFULLY REPORTING SUCH WASTE, FRAUD, OR ABUSE TO A DESIGNATED INVESTIGATIVE OR LAW ENFORCEMENT REPRESENTATIVE OF A FEDERAL DEPARTMENT OR AGENCY AUTHORIZED TO RECEIVE SUCH INFORMATION.

(2) THE PROHIBITION IN PARAGRAPH (U)(1) OF THIS PROVISION DOES NOT CONTRAVENE REQUIREMENTS APPLICABLE TO STANDARD FORM 312(Classified Information Nondisclosure Agreement), FORM 4414 (Sensitive Compartmented Information Nondisclosure Agreement), OR ANY OTHER FORM ISSUED BY A FEDERAL DEPARTMENT OR AGENCY GOVERNING THE NONDISCLOSURE OF *CLASSIFIED INFORMATION*.

(3) *REPRESENTATION*. BY SUBMISSION OF ITS *OFFER*, THE *OFFEROR* REPRESENTS THAT IT WILL NOT REQUIRE ITS EMPLOYEES OR SUBCONTRACTORS TO SIGN OR COMPLY WITH INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS PROHIBITING OR OTHERWISE RESTRICTING SUCH EMPLOYEES OR SUBCONTRACTORS FROM LAWFULLY REPORTING WASTE, FRAUD, OR ABUSE RELATED TO THE PERFORMANCE OF A GOVERNMENT CONTRACT TO A DESIGNATED INVESTIGATIVE OR LAW ENFORCEMENT REPRESENTATIVE OF A FEDERAL DEPARTMENT OR AGENCY AUTHORIZED TO RECEIVE SUCH INFORMATION (*E.G.*, AGENCY OFFICE OF THE INSPECTOR GENERAL).

(V) *COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION*. SECTION 889(A)(1)(A) AND SECTION 889 (A)(1)(B) OF PUBLIC LAW 115-232.

(1) THE *OFFEROR SHALL* REVIEW THE LIST OF EXCLUDED PARTIES IN THE SYSTEM FOR AWARD MANAGEMENT (SAM)([HTTPS://WWW.SAM.GOV](https://www.sam.gov)) FOR ENTITIES EXCLUDED FROM RECEIVING FEDERAL AWARDS FOR "COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES".

(2) THE *OFFEROR* REPRESENTS THAT–

(I) IT ☐ DOES, ☐ DOES NOT PROVIDE COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES AS A PART OF ITS OFFERED *PRODUCTS* OR SERVICES TO THE GOVERNMENT IN THE PERFORMANCE OF ANY CONTRACT, SUBCONTRACT, OR OTHER CONTRACTUAL INSTRUMENT.

(II) AFTER CONDUCTING A *REASONABLE INQUIRY* FOR PURPOSES OF THIS REPRESENTATION, THAT IT ☐ DOES, ☐ DOES NOT USE COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES, OR ANY EQUIPMENT,

SYSTEM, OR SERVICE THAT USES COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES.

(END OF PROVISION)

***ALTERNATE I* (FEB 2024). AS PRESCRIBED IN 12.301 (B)(2), ADD THE FOLLOWING PARAGRAPH (C)(12) TO THE BASIC PROVISION:**

(12) (COMPLETE IF THE *OFFEROR* HAS REPRESENTED ITSELF AS DISADVANTAGED IN PARAGRAPH (C)(5) OF THIS PROVISION.)

☐ **BLACK AMERICAN.**

☐ **HISPANIC AMERICAN.**

☐ **NATIVE AMERICAN (AMERICAN INDIANS, ESKIMOS, ALEUTS, OR NATIVE HAWAIIANS).**

☐ **ASIAN-PACIFIC AMERICAN (PERSONS WITH ORIGINS FROM BURMA, THAILAND, MALAYSIA, INDONESIA, SINGAPORE, BRUNEI, JAPAN, CHINA, TAIWAN, LAOS, CAMBODIA (KAMPUCHEA), VIETNAM, KOREA, THE PHILIPPINES, REPUBLIC OF PALAU, REPUBLIC OF THE MARSHALL ISLANDS, FEDERATED STATES OF MICRONESIA, THE COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS, GUAM, SAMOA, MACAO, HONG KONG, FIJI, TONGA, KIRIBATI, TUVALU, OR NAURU).**

☐ **SUBCONTINENT ASIAN (ASIAN-INDIAN) AMERICAN (PERSONS WITH ORIGINS FROM INDIA, PAKISTAN, BANGLADESH, SRI LANKA, BHUTAN, THE MALDIVES ISLANDS, OR NEPAL).**

☐ **INDIVIDUAL/CONCERN, OTHER THAN ONE OF THE PRECEDING.**

52.225-18, Place of Manufacture (AUG 2018).

(a) Definitions. As used in this provision—

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the Offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ___ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ___ Outside the United States.

52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran – Representation and Certification (JUN 2020).

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

_____ www.acquisition.gov _____

PART IV: PROPOSAL SUBMISSION REQUIREMENTS

Each proposal package shall consist of the following completed and signed documents: SF1449, all amendments issued, three Business Management Questionnaires of recent and relevant contracts for the same or similar items in accordance with FAR 52.212-1(b)(10) for past performance evaluation, and a completed copy of FPI 1000K2 Subcontract Certification (large businesses only). Blank Business Management Questionnaire forms can be downloaded from www.unicor.gov; click on Contracting Opportunities, place your cursor on About Procurement, then move your cursor over to Forms and click on it.

Any amendments issued to this solicitation shall be synopsisized in the same manner as this solicitation and must be acknowledged by each Offeror. Offeror must hold prices firm for 60 calendar days from the date specified for receipt of offers. Offers or modifications to offers received at the address specified for the receipt of offers after the exact time specified may not be considered.

Questions regarding this requirement may be addressed in writing to Daniel McCauley at daniel.mccauley2@usdoj.gov. All FAR forms, clauses and provisions necessary to submit an offer may be accessed at the following web site: <http://acquisition.gov/far>. This combined synopsis/solicitation and necessary forms are available on web site: <http://www.fbo.gov>.